

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

Index No.:
Date Purchased:

-----X
MICHAEL COLLINS,

SUMMONS

Plaintiff,

-against-

Plaintiff designates
BRONX County as the
place of trial

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. NELSON GARCIA, and OFFICER[S]
JOHN AND JAMES DOE, names being fictitious and
meant to designate additional offending officers,
Defendants.

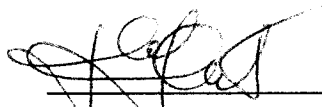
The basis of venue is:
CPLR 504 (3)

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To the above named Defendants:

You are hereby summoned to answer the complaint in this action, and
serve a copy of your answer, or, if the complaint is not served with this summons, to
serve a notice of appearance on the Plaintiff's attorneys within twenty days after the
service of this summons, exclusive of the day of service, where service is made by
delivery upon you personally within the state, or within 30 days after completion of
service where service is made in any other manner. In case of your failure to appear or
answer, judgment will be taken against you by default for the relief demanded in the
complaint to be assessed by the Court.

Dated: Bronx, N.Y.

November 30, 2012


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-0200

To:
CITY OF NEW YORK CORPORATION COUNSEL
100 Church Street, 4th Floor, Law Dept.
New York, New York 10007

P.O. Nelson Garcia, Shield 031257 of 46th Precinct
2120 Ryer Avenue Bronx, NY 10457

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF BRONX

-----X
MICHAEL COLLINS,

Index No.:

Plaintiff,

VERIFIED COMPLAINT

-against-

CITY OF NEW YORK, THE NEW YORK CITY POLICE
DEPARTMENT, P.O. NELSON GARCIA and OFFICER[S]
JOHN AND JAMES DOE, names being fictitious and
meant to designate additional offending officers,

Defendants.
-----X

Plaintiff, by his attorney, **Jonathan L. Gleit, Esq.**, complaining of the Defendants,

respectfully alleges, upon information and belief, as follows:

AS AND FOR A FIRST CAUSE OF ACTION ON BEHALF OF
THE PLAINTIFF MICHAEL COLLINS

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COUNTY CLERK
BRONX COUNTY

1. At the time of the commencement of this action, Plaintiff MICHAEL COLLINS
was and still is resident of the County of Bronx, City and State of New York.
2. That the causes of action alleged herein arose in the County of Bronx, City and
State of New York.

3. That at all times herein mentioned Defendant CITY OF NEW YORK was, and still is, a Municipal Corporation and body politic, duly formed, organized and existing under and by virtue of the laws of the State of New York.

4. That the CITY OF NEW YORK maintains a Police Department.

5. That on and about April 27, 2011, P.O. NELSON GARCIA was employed by the CITY OF NEW YORK and THE NEW YORK POLICE DEPARTMENT.

6. That on and about April 27, 2011, at approximately 10:25 P.M., P.O. NELSON GARCIA was working and acting within the scope of his employment as a Police Officer, and under the color of law.

7. That on and about April 27, 2011, OFFICER[S] JOHN AND/OR JAMES DOE were employed by the CITY OF NEW YORK and THE NEW YORK CITY POLICE DEPARTMENT.

8. That on and about April 27, 2011 at approximately 10:25 P.M., OFFICER[S] JOHN AND/OR JAMES DOE were working and acting within the scope of their employment as a Police Officer[s], and under the color of law.

9. That on or about April 27, 2011 at approximately 10:25 P.M., at 1901 Loring Place South, Bronx, New York, the plaintiff MICHAEL COLLINS was improperly arrested,

and confined without warrant, proper authority, privilege or justification, having no reason in law or in fact to arrest or confine MICHAEL COLLINS.

10. That the defendants, their agents, servants and/or employees arrested and confined the plaintiff without any basis in law or fact and without reasonable, probable or just cause or justification.

11. That the defendants, their agents, servants and/or employees arrested the plaintiff without any basis in law or fact, by making false accusations against him, when they knew, or in the exercise of reasonable care, should have known they were false.

12. That the defendants P.O. NELSON GARCIA and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

13. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and threaten and deny his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

14. That all criminal charges brought against plaintiff, which were brought under docket number 2011BX024003 in the Bronx Supreme Court, Criminal Division,

regarding the incidents of April 27, 2011, were dismissed by Hon. George Villegas, an Acting Justice of the Supreme Court, on October 3, 2011.

15. That by reason of the aforementioned, the Defendants actions amounted to a false arrest, false imprisonment and malicious prosecution of MICHAEL COLLINS.

16. As a result of the malicious prosecution, plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured and forced to defend his liberty for a period of approximately one hundred and fifty nine days.

17. That the defendants, their agents, servants and/or employees unlawfully arrested, detained, imprisoned and searched the plaintiff and took his property without any basis in law or fact, and plaintiff being aware of his unlawful confinement, thereby causing freight, shock, emotional distress and physical consequences.

18. That during the unlawful arrest of plaintiff, defendants utilized unlawful an unnecessary strip search without individualized reasonable suspicion of the secreting of evidence.

19. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of repeatedly arresting innocent citizens, almost exclusively citizens of a racial minority, and engaging in a policy and procedure of 'stopping and

frisking' citizens and targeting male minority individuals under the auspices of 'clean hall' affidavits while repeatedly failing to attempt to verify that the arrested individuals had a lawful reason to be present at the premises, and thereafter arresting these lawfully present minority males, without any probable cause or reasonable basis to do so, for nefarious, unlawful reasons, including to satisfy arrest quotas and subjugate and oppress that community in order to reduce illegal actions of a small minority who might engage in unlawful activities without regard to whether the individuals so stopped were themselves engaging in any unlawful actions, and without probable or reasonable cause, and especially and specifically officers of the 46th Precinct routinely engage in the use of practices such as illegal, unlawful and unnecessary searches in order to degrade, humiliate and subjugate persons, almost exclusively of a racial minority and repeatedly providing false information and testimony, and without reprimand to the offending officers. That said illegal and unlawful 'stop and frisk' and 'clean halls' arrests and arrests of innocent persons without reasonable or probable cause and conducting strip searches and invasive searches in public and while in custody when there is no reasonable basis to conduct an invasive strip search and without individualized reasonable suspicion of possession of weapons or contraband, are a matter of public policy and record and openly acknowledged or known by the

defendants, yet condoned without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein and further evidenced by the large amount of prosecutorial 'Decline to Prosecute' and dismissals of criminal charges after the resident of the buildings in question verify in court the lawful presence of the wrongly arrested persons. Further, officers of the New York City Police Department, and especially and specifically officers of the 46th Precinct routinely engage in the use of practices such as illegal, unlawful and unnecessary strip searches and anal cavity searches in order to degrade, humiliate and subjugate persons, almost exclusively of a racial minority, and testify falsely so often that such conduct is considered routine by the offending officers, without any reprimand of the offending officers, referral to the District Attorney or Federal Law Enforcement officials for criminal prosecution, or even bone fide internal investigation to deter actions like those complained of herein even though these occurrences are well known and evidenced by the multitude of actions brought in state and federal courts and complaints made to the Civilian Complaint Review Board and the Bureau of Internal Affairs and by specifically engaging in said conduct specifically with regard to plaintiff herein.

20. Furthermore patterns of wrongful strip searches by the 46th Precinct conducted without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity, after wrongfully arresting persons under the guise of an illegal trespass whom the District Attorney then Declined to Prosecute for failure of the arresting officer to cooperate, has occurred to such individuals such as, for instance to DAVID PALUZZI on April 25, 2010 after being wrongly arrested for trespassing at or near 217 East 176th Street, Bronx NY and JEFFREY JACKSON on November 12, 2010 after being wrongly arrested for trespassing near 2043 Creston Avenue, Bronx, New York, and YAMRIK PARKER on February 5, 2011 after being wrongly arrested for trespassing at or near 333 East 181st Street, Bronx NY, were all improperly strip searched by officers of the 46th Precinct without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity, after wrongfully arresting persons under the guise of an illegal trespass. Additionally KERRY DIXON on January 7, 2010 was wrongfully strip searched without a reasonable articulable suspicion that the searched person was secreting evidence within a bodily cavity by officers of the 46th Precinct after being wrongly arrested for trespassing at 2000 Valentine Avenue, Bronx NY and MICHAEL GIBSON, XAVIER JOHNSON and ELLIOT LOPEZ were wrongfully strip searched without a reasonable articulable suspicion that

the searched person was secreting evidence within a bodily cavity by officers of the 46th Precinct after being wrongly arrested for trespassing February 24, 2009 at 1514 Sedgwick Ave. , Bronx, NY, and those trespass criminal proceedings were terminated when all charges were dismissed by Justices of the Supreme Court. Further, such wrongful strip searches are well evidenced by the May 14, 2004 letter by the Civilian Complaint Review Board with attachments to Police Commissioner Raymond Kelly, detailing the NYPD policy of illegal strip searched by their officers, a copy of which is available to the public at <http://www.nyc.gov/html/ccrb/pdf/stripsearchletter.pdf>, and as evidenced by the above and within individuals and countless others demonstrates that said practices continue unabated.

21. That the CITY OF NEW YORK allowed, condoned, permitted and caused a policy and procedure of arresting innocent citizens, almost exclusively citizens of a racial minority under the auspices of 'clean halls' affidavits, and utilizing unreasonable invasive search procedures without individualized reasonable articulable suspicion of the secreting of evidence.

22. That no negligence or actions on the part of the plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

23. The herein above described actions and omissions, engaged in under the color

of law by the defendants, including the CITY OF NEW YORK, sued as a person within the meaning of Title 42 U.S.C. 1983, et seq., by policy, procedure and act, deprived the plaintiff of rights secured to him by the Constitution and laws of the United States, including, but not limited to his First Amendment right of freedom of expression, his Fourth Amendment right to be free from unlawful seizures of his person, his Fifth Amendment rights of due process of law and to equal protection of the laws, including the right to be free from unjustified confinement utilized by the police, his Eighth Amendment right to be free from cruel and unusual punishment, and under Title 42 U.S.C. 1983, et seq.

24. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

25. That as a result of the foregoing, the plaintiff MICHAEL COLLINS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A SECOND CAUSE OF ACTION ON BEHALF

OF THE PLAINTIFF MICHAEL COLLINS

26. That plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 25 as though more fully set forth herein.

27. That on or about December 22, 2011, and within 90 days after the claim herein sued upon, plaintiff caused a Notice of Claim, sworn to by or on behalf of the claimant, to be served upon the defendant CITY OF NEW YORK, by delivering a copy thereof, in duplicate, to the offices of the defendant CITY OF NEW YORK, which said Notice of Claim set forth the name and post office address of the claimant and claimant's attorney, the nature of the claim, the time when, the place where, and the manner in which the claim arose and items of damage or injuries claimed to have been sustained, so far as then practicable. At least thirty (30) days have elapsed prior to the commencement of this action since the service of such Notice of Claim as aforesaid and adjustment of payment thereof has been neglected or refused by the defendant, and defendant conducted a General Municipal Law §50h hearing of plaintiff on July 31, 2012, and this action was commenced on the claim within one year and ninety days after the happening of the event upon which the claim is based.

28. That this action is being commenced within one year and ninety days after accrual of this cause of action, or within the time allowed by law.

29. That the defendants, their agents, servants and/or employees prosecuted a criminal action against the Plaintiff without any basis in law or fact.

30. That the defendants, their agents, servants and/or employees continued to prosecute the criminal action against the Plaintiff due to racism and prejudice and without any basis in law or fact.

31. That the defendants P.O. NELSON GARCIA and/or OFFICER[S] JOHN AND JAMES DOE, did knowingly and maliciously provide false information to the prosecutor of the criminal action and testified against plaintiff thereby causing him to suffer an unjust prosecution initiated without probable cause that the prosecutions would succeed.

32. That defendants, their agents, servants and/or employees continued to prosecute plaintiff and deny him his freedom after they knew, or should have known, he was innocent of all charges being alleged against him.

33. That all criminal charges brought against plaintiff, which were brought under docket number 2011BX024003 in the Bronx Supreme Court, Criminal Division, regarding the incidents of April 27, 2011, were dismissed by Hon. George Villegas, an Acting Justice of the Supreme Court, on October 3, 2011

34. That by reason of the aforementioned, the Defendants actions amounted to malicious prosecution.

35. As a result of the malicious prosecution, Plaintiff was deprived of his liberty and suffered the humiliation, mental anguish, indignity and frustration of an unjust criminal prosecution, and was otherwise damaged and injured. The Plaintiff made court appearances to defend his liberty against these unjust charges over a period of approximately one hundred and fifty nine days.

36. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

37. That as a result of the foregoing, the Plaintiff MICHAEL COLLINS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A THIRD CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF MICHAEL COLLINS

38. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 37 as though more fully set forth herein.

39. That on or about April 27, 2011, at the 46th Precinct, 2120 Ryer Avenue, Bronx, New York, the plaintiff MICHAEL COLLINS was subjected to an improper, unnecessary, unjustified strip search.

40. That the defendants, their agents, servants and/or employees employed and utilized unreasonable and invasive search methods and procedures upon the plaintiff

such as a strip search without without and individualized articulable reasonable suspicion of the secreting of evidence.

41. That no negligence or actions on the part of the Plaintiff contributed to the occurrences alleged herein in any manner whatsoever.

42. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

43. That as a result of the foregoing, the Plaintiff MICHAEL COLLINS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

AS AND FOR A FOURTH CAUSE OF ACTION ON BEHALF OF

THE PLAINTIFF MICHAEL COLLINS

44. That Plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs enumerated 1 through 43 as though more fully set forth herein.

45. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants.

46. That the defendants carelessly, recklessly and negligently failed to properly interview, hire, select, train, manage, supervise and control its employees, agents, and / or servants and negligently retained its employees, agents, and / or servants in the

proper stoping and searching, and the arrest of individuals, and in the utilization of invasive search procedures utilized without reasonable individualized suspicion of the secreting of evidence.

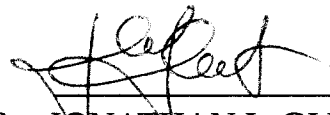
47. That solely by reason of the aforesaid occurrence, and as a direct and proximate result of the defendant's negligence, Plaintiff MICHAEL COLLINS was denied his freedom and rights under the federal and state constitutions and received great and severe injuries with accompanying physical and mental pain and suffering; that the plaintiff was made, still is and will continue to be sick, sore, lame and disabled and sustained other injuries, both internal and external, all of which, upon information and belief, will be permanent; that it was necessary and will be so in the future, to incur medical expenses for the care, treatment and attention of the plaintiff and for the purchase of drugs and medicines, and that plaintiff was and in the future will be prevented from attending to plaintiff's usual vocation and avocations; all to the plaintiff's damage in a sum which exceeds the jurisdiction of all lower Courts.

48. That this cause of action falls within one or more of the exceptions as set forth in CPLR Section 1602.

49. That as a result of the foregoing, the Plaintiff MICHAEL COLLINS was damaged in a sum which exceeds the jurisdiction of all lower Courts.

WHEREFORE, Plaintiffs demands judgment against the Defendants on the First ,
Second, Third and Fourth Causes of Action inclusive of punitive damages, and
attorneys fees as permitted by statute, all in sums which exceed the jurisdiction of all
lower Courts, together with the costs and disbursements of this action.

Dated: Bronx, N.Y.
November 30, 2012


By: **JONATHAN L. GLEIT, ESQ.**
Attorney for Plaintiff
MICHAEL COLLINS

888 Grand Concourse
Suite 1-O
Bronx, NY 10451
(718) 742-020

To:
CITY OF NEW YORK
CORPORATION COUNSEL
100 Church Street
4th Floor, Law Dept. , New York, New York 10007

P.O. Nelson Garcia, Shield 031257 of 46th Precinct
2120 Ryer Avenue Bronx, NY 10457

PLAINTIFF'S VERIFICATION

MICHAEL COLLINS affirms the following to be true under the penalties of perjury:

I am Plaintiff in the within action and have read the annexed

Complaint

and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe them to be true. My belief, as to those matters therein not stated upon knowledge, is based upon personal knowledge, facts, records, and other pertinent information contained in my files.

DATED: BRONX, N.Y.


MICHAEL COLLINS